

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
TERRY CROSS,

Plaintiff,

-against-

10 Civ. ____

FILED
CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ MAY 05 2010 ★

BROOKLYN OFFICE

COMPLAINT

CV 10- 2040

JOHNSON, J

THE CITY OF NEW YORK;
POLICE SERGEANT EDWARD BABINGTON;
POLICE OFFICER VICTOR TROIANO;
POLICE SERGEANT DAVID ROSIAK;
POLICE DETECTIVE JASON O'NEILL,
in their individual and official
capacities as New York City Police Officers,

Defendants.
-----X

REYES, M.J

Plaintiff Terry Cross, by and through his attorney, Florian Miedel, Esq., for his

Complaint alleges as follows:

PRELIMINARY STATEMENT

This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth Amendment and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff was deprived of his constitutional rights when he was arrested without probable cause by the individual defendants, wrongfully prosecuted for possession of a gun and marijuana, and wrongfully incarcerated for close to one year. The charges against him were dropped only after a federal district court judge determined that the

police officers responsible for his arrest were not credible, had possibly fabricated evidence, and had lacked probable cause to arrest Mr. Cross.

THE PARTIES

(1) Plaintiff Terry Cross is a citizen of the United States and at all relevant times was a resident of Kings County, State of New York.

(2) Defendant City of New York (“the City”) is a municipality organized and existing under the laws of the State of New York. At all times relevant hereto, the City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

(3) At all times relevant hereto, defendant Edward Babington, current shield number 426 (shield number at the time was 26316), was a police officer of the NYPD, acting in the capacity of agent, servant, and employee of the City, and within the scope of his employment as such.

(4) At all times relevant hereto, defendant Victor Troiano, shield number 2392, was a police officer of the NYPD, acting in the capacity of agent, servant, and employee of the City, and within the scope of his employment as such.

(5) At all times relevant hereto, defendant David Rosiak, was a police sergeant of the NYPD, acting in the capacity of agent, servant, and employee of the City, and

within the scope of his employment as such.

(6) At all times relevant hereto, defendant Jason O'Neill, shield number 350, was a police detective of the NYPD, acting in the capacity of agent, servant, and employee of the City, and within the scope of his employment as such.

(7) At all times relevant hereto, Defendants Babington, Troiano, Roskiak, and O'Neill (collectively the "Officer Defendants") were acting under the color of state law.

JURISDICTION AND VENUE

(8) This action arises under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. §§ 1983 and 1988, Article I, § 12 of the New York Constitution, and New York state common law.

(9) The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a), and the doctrine of pendent jurisdiction.

(10) The acts complained of occurred in the Eastern District of New York, and venue is lodged in this Court pursuant to 28 U.S.C. § 1391(b).

JURY DEMAND

(11) Plaintiff demands trial by jury in this action.

FACTUAL ALLEGATIONS

(12) In the early morning of August 23, 2007, Plaintiff, Terry Cross, was approached by New York City Police Officer Victor Troiano in front of 472 Ashford Street in Brooklyn, New York.

(13) Officer Troiano asked Mr. Cross questions about where he had been and where he was going, and demanded to see identification, which Mr. Cross provided.

(14) Shortly thereafter, Officer Troiano was joined by New York City Police Sergeant David Rosiak.

(15) Within minutes, Mr. Cross was handcuffed and placed under arrest. He was put in a police van and driven around the corner, eventually stopping in front of 551 Warwick Street.

(16) New York Police Officer Edward Babington emerged from the residence at 551 Warwick Street, entered the van and sat with Mr. Cross.

(17) Officer Babington stated that he had found contraband on a table inside the house and demanded to know where the rest of it was.

(18) Mr. Cross denied knowledge of any contraband.

(19) Mr. Cross was brought to the precinct.

(20) At the precinct, Detective Jason O'Neill approached Mr. Cross, took him out of the holding cell, placed him in an interview room, and began to question him.

(21) Mr. Cross told the detective that he had no intention of speaking without the assistance of a lawyer. At no time did Mr. Cross discuss the facts of the case or the events of the morning of August 23rd.

(22) Mr. Cross was eventually processed and brought to Kings County Criminal Court for arraignment.

(23) On August 24, 2007, Mr. Cross was arraigned on a felony complaint that charged him with criminal possession of a weapon in the second and fourth degrees, criminal

possession of marihuana in the second and third degrees, and possession of pistol ammunition.

Bail was set and the case was adjourned to August 30th.

(24) Mr. Cross posted bail and was released.

(25) On August 30, 2007, agents of the Bureau of Alcohol Tobacco and Firearms (ATF) arrested Mr. Cross at his home and delivered him to the United States District Court in the Eastern District of New York for arraignment.

(26) On August 30, 2007, Mr. Cross was arraigned before Magistrate Judge James Orenstein on a complaint, charging him with being a felon in possession of a firearm in violation of 18 U.S.C § 922(g).

(27) The complaint alleged, among other things, that on August 23rd, NYPD Officers saw Mr. Cross standing in the backyard area of 551 Warwick Street and then run through adjoining backyards. When the area where Mr. Cross had allegedly been standing was searched, police recovered a plastic bag containing a firearm, and next to it, a bag of marihuana. Inside the residence at 551 Warwick Street, the police allegedly recovered more marihuana and five rounds of ammunition. The complaint further alleged that Mr. Cross was administered *Miranda* warnings at the precinct and then made an oral statement admitting to possession of the gun and marihuana. Finally, the complaint alleged that Mr. Cross had previously been convicted of a felony.

(28) Mr. Cross denied and continues to deny the false allegations in the complaint.

(29) Mr. Cross was ordered detained.

(30) Mr. Cross was subsequently indicted for knowingly possessing marihuana

with the intent to distribute, knowingly possessing a firearm in furtherance of a drug trafficking crime, and being a felon in possession of a firearm.

(31) District Court Judge Dora L. Irizarry conducted a suppression hearing in the case, which began on June 10, 2008, and continued on July 24 and September 23, 2008.

(32) Officers Babington, Troiano, Sergeant Rosiak, and Detective O'Neill testified for the government. Mr. Cross testified in his own defense.

(33) The police officers testified in summary that a confidential informant had made three purchases of marihuana at 551 Warwick Street and had observed a gun inside the building.

(34) They also testified that the confidential informant identified Terry Cross from a photo array presented to him as the person who had sold him marihuana.

(35) Officers obtained a search warrant for 551 Warwick Street, which was executed on the morning of August 23, 2007.

(36) Officer Troiano testified that he saw a person in the backyard of 551 Warwick Street.

(37) Officer Babington testified that he encountered Terry Cross a block away on Ashford Street.

(38) He testified that he arrested Mr. Cross because he recognized Mr. Cross from the confidential informant's identification, because Mr. Cross allegedly matched the radioed description of the fleeing individual, and because Mr. Cross did not provide a good reason for his presence on Ashford Street.

(39) Officer Babington also testified that he subsequently recovered a bag in a

backyard adjoining 551 Warwick Street that contained a firearm and marihuana.

(40) Detective O'Neill testified that later, at the precinct, Mr. Cross waived his *Miranda* rights and made an oral statement in which he admitted to possession of the firearm and marihuana.

(41) On November 14, 2008, Judge Irizarry granted Mr. Cross's motion to suppress any statements he purportedly made as fruit of an unlawful arrest.

(42) The Court also suppressed \$176 taken from Mr. Cross at the time of his arrest.

(43) Judge Irizarry granted suppression because she found the testimony of the police officers to have been "incredible." The Court declared that she believed the officers to have "perjured themselves" and that there was "a serious possibility that some evidence was fabricated by these officers." The Court went so far as to instruct the United States Attorney's office to "look into this matter and make a determination as to whether or not charges should be brought against these officers for perjury."¹

(44) On October 2, 2009, the Court issued a written memorandum and order granting Mr. Cross's motion to suppress.²

(45) In the decision, the Court made clear that it did not believe the officers' testimony about the circumstances of Mr. Cross's arrest. It did not believe that a photo array had ever taken place and did not believe Officer Troiano's testimony that he observed Mr. Cross in the backyard of 551 Warwick Street.

¹ The quotations in the paragraph are taken from the transcript of court proceedings on November 14, 2008, Exhibit A.

² See Judge Irizarry Decision, dated October 2, 2009, Exhibit B.

(46) In contrast, the Court found Mr. Cross to be credible and credited his testimony.

(47) Accordingly the Court granted suppression because it concluded that the police lacked probable cause to arrest Mr. Cross.

(48) On January 7, 2010, the United States Attorney's Office moved to dismiss the indictment.

(49) On January 8, 2010, District Judge Irizarry granted the motion to dismiss the indictment against Mr. Cross.

(50) Terry Cross was incarcerated from August 30, 2007, until August 11, 2008, when bond for his release was finally granted.

(51) Subsequent to his release, Mr. Cross remained under strict pretrial supervision until the case against him was dismissed on January 8, 2010.

(52) As a result of defendants' conduct described above, including in falsely arresting, falsely imprisoning, illegally searching and maliciously prosecuting Mr. Cross, Mr. Cross suffered serious emotional injury, pain and suffering, emotional distress, mental anguish, humiliation and embarrassment.

(53) The arrest, detention and prosecution of Mr. Cross lacked probable cause, and were done maliciously, falsely, and in bad faith. Defendants Babington, Troiano, Rosiak, and O'Neill acted in wanton and reckless disregard for the rights of Mr. Cross.

(54) Mr. Cross has suffered substantial emotional harm. He was unlawfully imprisoned for almost a year at a maximum security detention center, facing false charges that could have resulted in lengthy sentences. He remained under strict court supervision for almost

eighteen months after his release on bond.

(55) Within ninety days after the dismissal of all charges against Mr. Cross, a written notice of claim was served personally at the Comptroller's office at 1 Centre Street, New York, New York.

(56) At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

(57) This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FIRST CAUSE OF ACTION

Fourth Amendment – False Arrest
(Against the Officer Defendants)

(58) Plaintiff repeats and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

(59) By arresting and imprisoning Mr. Cross without probable cause, seizing him, searching him, imprisoning him, falsifying an account of the events surrounding the arrest of Mr. Cross upon which a criminal complaint was based, making false statements under oath in the criminal court complaint against Mr. Cross, perjuring themselves before the Grand Jury and in Federal Court, and failing to take steps to intercede and protect Mr. Cross from such treatment, the Officer Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution.

(60) In addition, the Officer Defendants conspired among themselves to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and by the Fourth and Fourteenth Amendments to the United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

(61) The Officer Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as NYPD officers. Said acts by the Officer Defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth and Fourteenth Amendments to the United States Constitution.

(62) As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before alleged.

SECOND CAUSE OF ACTION

Fourth Amendment – Malicious Prosecution (Against the Officer Defendants)

(63) Plaintiff repeats and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

(64) The Officer Defendants maliciously commenced criminal proceedings against Plaintiff, charging him with possession of a weapon and possession of marihuana, in addition to other charges. Moreover, Officer Defendants maliciously continued with criminal proceedings against Plaintiff in federal court, where he was falsely charged with knowingly

possessing marihuana with the intent to distribute, knowingly possessing a firearm in furtherance of a drug trafficking crime, and being a felon in possession of a firearm.

(65) The Officer Defendants charged Plaintiff with these crimes falsely, maliciously, in bad faith, and without probable cause.

(66) After almost two and a half years of proceedings in federal court, in which Plaintiff was forced to defend himself, all charges against Plaintiff were terminated in Plaintiff's favor.

(67) As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Malicious Prosecution

(Against Officer Defendants and the City of New York)

(68) Plaintiff repeats and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

(69) The Officer Defendants maliciously commenced criminal proceedings against Plaintiff, charging him with possession of a weapon and possession of marihuana, in addition to other charges. Moreover, Officer Defendants maliciously continued with criminal proceedings against Plaintiff in federal court, where he was falsely charged with knowingly possessing marihuana with the intent to distribute, knowingly possessing a firearm in furtherance of a drug trafficking crime, and being a felon in possession of a firearm.

(70) The Officer Defendants charged Plaintiff with these crimes falsely, maliciously, in bad faith, and without probable cause.

(71) After proceedings in criminal court and then for two and a half years in federal court in which Plaintiff was forced to defend himself, all charges against Plaintiff were terminated in Plaintiff's favor.

(72) Defendant City, as employer of Officer Defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

(73) As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages alleged.

FOURTH CAUSE OF ACTION

Negligent Hiring and Retention of
Employment Services
(Against the City)

(74) Plaintiff repeats and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

(75) The City, through the NYPD, owed a duty of care to Plaintiff to prevent the mental and emotional abuse sustained by Plaintiff. The Officer Defendants were unfit and incompetent for their positions as police officers.

(76) Upon information and belief, the City knew or should have known through the exercise of reasonable diligence that the Officer Defendants were unfit and perjurious.

(77) Upon information and belief, the City's negligence in hiring and retaining the Officer Defendants proximately caused Plaintiff's injuries.

(78) Upon information and belief, because of the City's negligent hiring and retention of the aforementioned Officer Defendants, Plaintiff incurred significant and lasting mental and emotional injuries.

WHEREFORE, Plaintiff respectfully request judgment against Defendants
as follows:

- a. That the jury find and the Court adjudge and decree that plaintiff shall recover compensatory damages in the sum of \$1,000,000, against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$1,000,000 against the individual defendants, jointly and severally;
- b. Reasonable attorneys' fees and costs under 42 U.S.C. § 1988;
- d. Such other and further relief as this Court may deem just and proper.

Dated: New York, New York
May 5, 2010


FLORIAN MIEDEL, ESQ. (FM 5968)
111 Broadway, Suite 1401
New York, New York 10006
(212) 616-3042

Attorney for Plaintiff

EXHIBIT A

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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,

: 07-CR-0730 (DLI)

-against-

: United States Courthouse
: Brooklyn, New York

TERRY CROSS,

Defendant.

: November 14, 2008
: 11:30 a.m.

CRIMINAL CAUSE FOR STATUS CONFERENCE
BEFORE THE HONORABLE DORA L. IRIZARRY
UNITED STATES DISTRICT COURT JUDGE

A P P E A R A N C E S:

For the Government:

United States Attorneys Office
Eastern District of New York
271 Cadman Plaza East
Brooklyn, New York 11201
BY: ALEXANDER SOLOMON, ESQ.

For the Defendant:

Federal Defenders of New York, Inc.
16 Court Street, 3rd Floor
Brooklyn, NY 11241
BY: MICHAEL K. SCHNEIDER, ESQ.

Court Reporter:

Nicole M. Warren, CSR, RMR, CRR
Official Court Reporter
Telephone: (718) 613-2599

Proceedings recorded by computerized stenography
Transcript produced by Computer-aided Transcription.

Nicole M. Warren, CSR, RMR, CRR

1 (In open court; all parties present.)

2 THE COURT: You may call the case.

3 COURTROOM DEPUTY: Criminal cause for status
4 conference, Docket No. 07-CR-730, United States versus Terry
5 Cross.

6 Please state your appearances.

7 MR. SOLOMON: Alex Solomon for the Government together
8 with Amina Ali of probation.

9 Good morning, your Honor.

10 THE COURT: Good morning.

11 MR. SCHNEIDER: Federal Defenders by Michael Schneider
12 for Mr. Cross who's present in the courtroom.

13 THE COURT: Good morning to you both.

14 All right. This is on for a status conference. A
15 rather extensive suppression hearing was held on this matter,
16 and the Court is going to render an oral decision today with a
17 written decision to follow. The written decision is in a near
18 final form, but I still need to do some additional work on it.

19 With respect to defendant's motion to suppress, his
20 motion to suppress is granted.

21 The bottom line here is that the testimony of the
22 three police officers who testified here was just incredible,
23 and I say "incredible" as a matter of law.

24 Frankly, in my view I believe these officers perjured
25 themselves. In my view there is a serious possibility that

Nicole M. Warren, CSR, RMR, CRR

1 some evidence was fabricated by these officers.

2 It is equally disturbing or it makes it even more
3 disturbing to know that the disclosures that the police
4 officers made to the Assistant United States Attorney assigned
5 ultimately to handle the hearing, that there were piecemeal
6 disclosures that came very late about not surprisingly
7 incriminatory statements allegedly made by the defendant that
8 made the Government's case better that in the year or so that
9 this case was pending had not been disclosed to apparently
10 either to the assistant and then, of course, obviously not
11 disclosed to the defense.

12 Had this matter stayed in state court where it
13 originally was until it was adopted by the US Attorney's
14 office, those statements and any evidence that wasn't timely
15 turned over to the defense would have been precluded.

16 The Court finds that there was no probable cause for
17 the arrest of Mr. Cross; and, therefore, any post-arrest
18 statements that he made are not admissible.

19 The Court, therefore, finds it unnecessary and
20 declines to decide whether he knowingly, Mr. Cross knowingly,
21 waived his Miranda rights because any statements obtained
22 post-arrest must be suppressed.

23 The Court also declines to decide whether the
24 informant's identity needs to be revealed to the defendant.
25 The Court notes in this regard that for all intents and

Nicole M. Warren, CSR, RMR, CRR

1 purposes it's probably a moot issue anyway in light of the
2 Court's decision but also because of the fact that, as it turns
3 out, the informant died just shortly I think within a day or
4 two of when the hearing began in this case.

5 In the Court's view the Court does not see how the
6 Government can connect the defendant to the gym bag or the
7 duffel bag that contained the additional -- the marijuana with
8 which the defendant is charged and the guns with which he is
9 charged, absent his statements, especially in light of the fact
10 that the Court doubts the testimony of Officer Troiano that it
11 was the defendant that he saw running through the back of I
12 think it was 551 Warwick Street. There is no testimony by any
13 police officer that they saw the defendant throw the bag
14 into -- the bag wasn't even found in the lot, in the backyard
15 lot of the building. No one saw the defendant put it there or
16 throw it there, and there's nothing else to connect the
17 defendant to the bag.

18 Rather than outright dismissing this case, I will give
19 the Government 30 days to review its case and to make a
20 determination as to whether or not they have sufficient
21 evidence with which to proceed.

22 I expect to provide a written decision within the next
23 week so that both sides will have the benefit of the Court's
24 reasoning and fact-finding so that you can make a
25 determination, your office can make a determination,

Nicole M. Warren, CSR, RMR, CRR

1 Mr. Solomon, as to how the case is going to proceed.

2 In all fairness, Mr. Solomon, I have to say I know
3 that there were several assistants that were assigned to the
4 case and you had the difficult task of preparing this case for
5 a hearing with whatever you had but it's disturbing that -- and
6 I think I started to mention this and got a little sidetracked
7 about the informant. It's disturbing that one of the things
8 that were brought to the attention of both defense counsel and
9 the Court the day that the hearing was to start was that these
10 very same officers just a year before in this courthouse gave
11 contradictory testimony or had prior inconsistent statements to
12 give them the benefit of the doubt in another case that had
13 been handled by the Federal Defenders' office; and there were
14 inconsistencies in their grand jury testimony, in their hearing
15 testimony, and their trial testimony.

16 In light of their incredible testimony here, it is my
17 hope that the US Attorney's office will look into this matter
18 and make a determination as to whether or not charges should be
19 brought against these officers for perjury. This is shameful
20 conduct. My opinion will elaborate on my credibility findings
21 but from everyone including Sergeant Rosiak who was assigned
22 from the Intelligence Bureau specifically to give guidance to
23 these street officers -- and he was probably the worst
24 offender.

25 It's disturbing. It's disturbing. And it's

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1 disturbing that in other cases where defendants are charged
2 with being a felon in possession of a weapon, even where there
3 is a strong possibility or a strong probability that the
4 defendant may have possessed the weapon in cases before
5 me -- I'm not even talking about cases in front of other judges
6 but other judges have remarked the same thing in this district.

7 These officers are coming here before the Court and
8 committing perjury. I strongly urge the US Attorney's office
9 to look at these cases that are being adopted from the various
10 D.A.'s offices within the district before they take them on and
11 get complete disclosure about the facts of the case and the
12 documents before you make any determination as to whether to
13 accept them.

14 Before the US Attorney's office puts the credibility
15 of the United States Government and its full investigative
16 power and authority behind a criminal case in particular where
17 life and liberty are at stake, it's part of the quasi-judicial
18 duty of the office to make sure that the evidence that's being
19 presented to a jury or to a Court is evidence that they can
20 stand behind with full faith and confidence and is not perjured
21 testimony.

22 I don't care whether it's police officers or FBI
23 agents or cooperating witnesses. That doesn't matter. In
24 these felon-in-possession-of-a-weapon cases in particular, this
25 appears to be a terrible problem.

Nicole M. Warren, CSR, RMR, CRR

1 I state that for the record in the hopes that,
2 Mr. Solomon, you can go back to your office and discuss this
3 with Mr. Andres and Mr. Campbell and convey the feelings of the
4 Court. You can order the minutes of these proceedings, and
5 certainly you will have the Court's decision on hand to discuss
6 that and perhaps to help you with your evaluation as to where
7 you're going to go with this case.

8 Mr. Cross, in the meantime the case is not completely
9 over yet because I am giving the Government leave to decide
10 what they want to do with this case. I don't know what all
11 their evidence is. So, I can only make an assessment as to
12 what the viability of their case is based on what has been
13 presented to me; but as Mr. Schneider can explain to you in
14 more detail, in my experience because the hearing addresses
15 only a limited issue, they don't need to necessarily need to
16 put the whole case out there.

17 So, I'm giving them the opportunity to make a
18 determination as to whether they have a viable case or not.
19 So, that means you still have a responsibility to show up in
20 court; and you have to show up in court and to comply with all
21 of the terms of your release. In that regard I do have a
22 memorandum from pretrial services.

23 Ms. Adossa-Ali, do you want to address that
24 memorandum? It was dated October 28th, and I believe both the
25 Government and Mr. Schneider got a copy of Mr. Ilaria's report

1 as well.

2 It apparently had a violation of your pretrial release
3 because you're subject to home confinement.

4 THE DEFENDANT: Yes, ma'am.

5 THE COURT: Okay. Do you want to address that,
6 Ms. Ali?

7 PROBATION OFFICER: Your Honor, on October 23rd I
8 accompanied Mr. Ilaria on an unannounced home visit to
9 Mr. Cross' house at which time when we approached the house
10 there was an individual standing in the middle of the street
11 probably about 200 to 300 feet, you know, in front of us and
12 when we got closer look, it was Mr. Cross who is not permitted
13 to -- he's permitted to leave the residence and stay within the
14 confines of his fence and he was, you know, several, several
15 feet away at which time we asked him, you know, if he had been
16 given permission.

17 He said he had not but he was in need of money and
18 helped a neighbor move speakers and, you know, he admitted that
19 he knew what the conditions were but that he, you know, he had
20 needed to move these speakers in order to obtain some income
21 for his -- you know, to help support the household.

22 At that time Mr. Ilaria, you know, told him that he
23 wouldn't be given any time out, that he had found out that day
24 that your Honor granted permission for him to work but because
25 of the violation that he wouldn't be given any time out until

1 after the matter was addressed.

2 THE COURT: Mr. Schneider, do you want to address
3 that?

4 MR. SCHNEIDER: Well, I will say that I think that
5 Ms. Ali's statement of the facts is accurate. Mr. Cross has
6 acknowledged that he was outside the front yard of his house
7 and that he was not allowed to do that. So, he acknowledges
8 that he violated the conditions of his bond. I guess as an
9 explanation a neighbor had possession of lots of Mr. Cross' DJ
10 equipment since before he was arrested and had been storing it
11 at his house but was really -- had to get it out and was
12 telling Mr. Cross that he had to get it out and pressuring him
13 a lot and Mr. Cross couldn't fit it in his mother's house. His
14 mother didn't want it.

15 So, they arranged to sell it to somebody else; but the
16 person's disabled and couldn't move the speakers. So,
17 Mr. Cross did go down the block to help put the speakers in the
18 van.

19 He acknowledges he violated the conditions of his
20 bond. That's his explanation. I discussed it with him after I
21 found out. Mr. Ilaria told me right away and Mr. Cross
22 acknowledged it to me and we had quite a conversation about it.

23 However, in light of the decision the judge -- the
24 Court has just rendered, I would request that his bond
25 conditions stay the same and that the recently assigned

1 modification which allows him to seek work obviously with prior
2 notice to pretrial services about where he's going for
3 interviews and if he gets a job, what his schedule is, that
4 that -- those remain the same.

5 Certainly at this point in time it would be foolish in
6 the extreme for Mr. Cross to flee the jurisdiction for
7 something like that with the Court's recently rendered
8 decision.

9 THE COURT: Mr. Solomon, is there anything that you'd
10 like to say on behalf of the Government?

11 MR. SOLOMON: The Government merely suggests that
12 Mr. Cross be admonished to abide by the terms of his release.

13 THE COURT: Mr. Cross, I think that Mr. Schneider has
14 really stated the situation quite eloquently. It would be just
15 the extremist folly to put it plainly mess things up right now
16 under the circumstances by not complying with your bail
17 conditions. Okay?

18 THE DEFENDANT: I agree.

19 THE COURT: As I said, you need to show up in court
20 because if you don't show up in Court the bond will be
21 forfeited. The sureters will be out their money, their
22 property, all that. Not only that, you could be charged with
23 an additional crime. It's an additional crime to jump bail,
24 and you could be charged with contempt of court. That's
25 additional jail time, regardless of what happens with this

1 case, whether it's dismissed or not. That's a separate crime
2 all by itself which is not that hard to prove, okay, from the
3 Government's perspective.

4 So, all the conditions, you know, whatever they may
5 be, okay, you need to follow them. Sometimes emergencies
6 happen like, heaven forbid, you've got to go to a doctor or the
7 hospital on an emergency basis; but you need to keep that line
8 of communication with pretrial services open and make sure that
9 you make immediate contact.

10 Like a situation like that, at least call pretrial
11 services before you go out there and tell them this is what's
12 going on. Get permission. Leave a voice message, something.
13 Okay? It's important for you to be able to work, you know, and
14 to keep your time occupied in a lawful way. So, that's why I
15 granted the condition for you to be able to go out to seek
16 lawful employment and verifiable employment. All right?

17 So, I'm going to let that condition stand and you'll
18 be able to -- all the other conditions are going to remain the
19 same but with respect to you'll be able to leave the house for
20 any religious services. I don't know if you're a church going
21 fellow or not.

22 THE DEFENDANT: Yes, I am.

23 THE COURT: You may go for religious services; medical
24 treatment, if necessary; and to look for employment. You have
25 to provide verification of all of this; and you need to set up

1 a schedule with pretrial services as to when you're going to go
2 to church, what church you're going to go to, what times you go
3 to the service, and all of that. Okay?

4 So, you need to work that out with pretrial services.

5 He can go down today, right, to speak to Mr. Ilaria?

6 PROBATION OFFICER: Mr. Ilaria's out of the office,
7 but there will be someone who can help him.

8 THE COURT: Okay. So, I suggest that you do that once
9 you leave here. All right?

10 Is there anything else that the Government would like
11 to put on the record or defense counsel before I set a date for
12 further proceedings?

13 MR. SOLOMON: Nothing further, your Honor.

14 MR. SCHNEIDER: No, thank you.

15 THE COURT: Are the parties available at 10:00 o'clock
16 on December 17th?

17 MR. SCHNEIDER: Yes.

18 MR. SOLOMON: Your Honor, we have mandatory training
19 for our office between the 15th and 17th.

20 THE COURT: Between the 15th and the 17th?

21 MR. SOLOMON: Yes, your Honor.

22 THE COURT: How about 10:30, December 18th?

23 MR. SCHNEIDER: That's fine with me.

24 MR. SOLOMON: That's fine, your Honor. Thank you.

25 THE COURT: That will be for a status conference as

1 indicated on the record today.

2 Mr. Schneider, do you consent to the exclusion of
3 time?

4 MR. SCHNEIDER: I do, your Honor. I do consent to the
5 exclusion of time. I actually think time should be excluded
6 because the motion is still pending.

7 THE COURT: That's true.

8 MR. SCHNEIDER: And I haven't seen the statute
9 recently, but I think the Government's entitled to time to
10 decide how to proceed.

11 THE COURT: I do believe that that's correct. So, the
12 time is excluded in any event in the interest of justice for
13 all the reasons that were stated on the record.

14 Thank you. The parties are excused.

15 Don't forget to go to pretrial services, Mr. Cross.

16 THE DEFENDANT: Yes, ma'am. Thank you, ma'am.

17 THE COURT: Okay.

18 (Whereupon the proceedings adjourned to December 18,
19 2008.)

EXHIBIT B

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
UNITED STATES OF AMERICA,

-against-

TERRY CROSS,

Defendant.
----- X

MEMORANDUM & ORDER

07-cr-730 (DLI)

DORA L. IRIZARRY, United States District Judge:

Defendant Terry Cross is charged with knowingly possessing marijuana with the intent to distribute, knowingly possessing a firearm in furtherance of a drug trafficking crime, and being a felon in possession of a firearm, in violation of 21 U.S.C. § 841(b)(1)(D), 18 U.S.C. §§ 924(c)-(1) (A)(i), 924(a)(2), 922(g)(1), and 3551 *et. seq.*, respectively. He seeks to suppress his post-arrest statements and \$176 that the police recovered from him. He contends that the statements and money were the products of a warrantless arrest without probable cause, thereby violating his rights under the Fourth, Fifth, and Sixth Amendments of the United States Constitution.¹

The court held an evidentiary hearing on Cross's motion over the government's objection.

¹ On March 24, 2008, the court denied defendant's motion to suppress certain items recovered inside his residence at 551 Warwick Street, Brooklyn, pursuant to the execution of a search warrant. The court found sufficient probable cause for the issuance of that warrant. Thus, the search of the residence was legal and anything recovered inside the residence is admissible. Defendant also seeks an order pursuant to *Roviaro v. United States*, 353 U.S. 53 (1957), requiring the government to provide the identity of the confidential informant ("CI") in this case or produce the informant for examination. The informant had died before the hearing was held on the remainder of defendant's motion to suppress. Thus, the court need not decide this issue at this time.

The hearing began on June 10, 2008 and continued on July 24, 2008 and September 23, 2008.² Officers Edward Babington and Victor Troiano, Detective Jason O'Neill, and Sergeant David L. Rosiak of the New York Police Department ("NYPD") testified for the government. Cross also testified. The police gave inconsistent accounts of the circumstances surrounding Cross's arrest. Their accounts also conflicted with defendant's account. It falls to this court to assess the credibility of the witnesses. *See, e.g., United States v. Yousef*, 327 F.3d 56, 124 (2d Cir. 2003) (citations omitted). For the reasons set forth below, the court cannot credit the testimony of the police. The court credits Cross's statements regarding the events immediately surrounding his arrest on August 23, 2007. As a result, the court finds that the police did not have probable cause to arrest Cross. Accordingly, the motion to suppress is granted.

I. Background

On August 23, 2007, officers from Police Service Area 2 ("PSA 2") of the NYPD executed a search warrant for 551 Warwick Street in Brooklyn, New York, issued by a Justice of the Kings County Supreme Court. Earlier that August, the police, through the CI, had arranged three controlled purchases of marijuana from that address. The scope of the search warrant was confined to the premises of the address and to anyone seen entering or leaving it. It did not specify Cross or any other individual by name or description. Inside the home, the police found a small bag of marijuana and five rounds of ammunition. In the backyard adjacent to the backyard of 551 Warwick Street, the police discovered a gray plastic bag containing a KBI Makarov 9x18 semi-automatic pistol, some scales, and more marijuana. While executing the search warrant, the police arrested Cross several houses away, on Ashford Street, which runs parallel to Warwick Street. (*See* Def. Ex. A (Google Map and satellite photo of the area around

² "Tr." refers to the hearing transcript from the first two days of hearings. "Tr. 2" refers to the transcript from the remaining day.

551 Warwick Street.) The government contends that the police had probable cause to apprehend Cross because the CI had identified Cross as the marijuana dealer at 551 Warwick Street through a photo-array identification. Additionally, the government claims that Babington and Troiano's observations during the execution of the search warrant provided independent probable cause for the arrest. Defendant argues that the government has failed to establish that the photo-array identification had occurred. Additionally, he questions the veracity of Babington, Troiano, and Rosiak's testimonies regarding the execution of the search warrant.

A. The Government's Account

Babington testified that the investigation of this case began when the CI approached and informed him that an individual with a firearm was selling marijuana from 551 Warwick Street. (Tr. at 23.) The police made three controlled buys of marijuana at that location in \$50 increments. (Tr. at 24-25.) Babington said the CI identified the seller as "T or Terry" and pointed to Cross's picture in a photo array. (Tr. at 24-26.) Babington's application for the search warrant did not mention Cross or the photo-array identification. (*See* Ex. B to the Gov't June 17, 2008 Letter.)

Babington was among the fifteen or more officers who executed the "no-knock" search warrant on the morning of August 23, 2007. (Tr. at 45.) He and Troiano stood in front of the two-story brick townhouse and handled "front-window security" while a team from the Emergency Services Unit ("ESU") attempted to open the front door. (Tr. at 27-28.) Babington and Troiano were responsible for monitoring the front windows of the townhouse for possible threats to the ESU team. (Tr. at 28.) As they waited, Babington recalled hearing a bang in the backyard and some dogs barking, so he directed Troiano to investigate. (Tr. at 32, 51.)

Troiano testified that he did not recall hearing noise from the back or being directed by

Babington to investigate the backyard. (Tr. at 115-16.) He said he went around to observe the rear of the house when it appeared that the ESU team was having trouble opening the front door. (Tr. at 116.) The townhouses along Warwick Street are attached, with chain-link fences dividing each lot. (Tr. at 109-110; *see also* Def. Ex. A.) Therefore, in order to walk behind the row of houses, Troiano had to walk to the end of the row, turn left onto a private driveway, and enter into another backyard. (Def. Ex. A.) He testified that, from there, he could see, without the aid of binoculars, through several fenced yards into the backyard of 551 Warwick Street. (Tr. at 110-11.) Waist-high bushes and six-foot chain-link fences separating the backyards partially obstructed his view. (Tr. at 104-106.) Troiano, who is five feet eight inches tall, did not stand on a trash can or climb onto one of the fences. (Tr. at 111.) Through the layers of chain-link fences, he allegedly saw a man in the backyard of 551 Warwick Street. Troiano described that man as about six feet tall, wearing a knit cap and brown sweatshirt. (Tr. at 104.) He could not see the man's facial features but described him as looking very "antsy" and nervous. (*Id.*) He saw the man make "an upward motion with his arm" toward the back corner of the yard but could not tell what was in the man's hands because of the bushes that obstructed his view. (Tr. at 105.) Then, the man began to move north, further away from Troiano, by jumping across the fences of other backyards behind the homes on Warwick Street. (Tr. at 106.) At some point, the man turned eastward toward Ashford Street.

Troiano radioed his observations to Babington, who then headed north on Warwick Street toward Sutter Avenue. (Tr. at 33.) When Babington heard that the man had turned east toward Ashford Street, he too turned east on Sutter Avenue and then turned north onto Ashford Street. (Tr. at 54-55.) Babington then proceeded to "walk" down the block and saw a male, fitting the description that Troiano provided, appear from a driveway. (Tr. at 55.) The man was out of

breath, sweaty, and appeared nervous. (Tr. at 34.) Babington asked the man to give his name and where he was coming from. "Terry," the man responded, and motioned with his head as if he had come from the back of the home. (*Id.*) Babington then asked for and received the man's identification, a New York State driver's license, indicating that he was Cross. (Tr. at 35.) He then ordered Cross to turn around and handcuffed him. (*Id.*) Babington testified that he arrested Cross because: (1) he recognized Cross from the CI's photo identification; (2) Cross matched the description of the individual fleeing from 551 Warwick Street; and (3) Cross did not give a good reason for his presence in the driveway. (*Id.*)

Babington testified that, as he made the arrest, Rosiak and Officer Velez pulled up in a car, and Cross was placed in that car. (Tr. at 36, 37.) Later, Babington identified the car as an unmarked gray minivan. (Tr. at 61, 210.) Babington testified that, after dropping Cross off at 551 Warwick Street, he retraced Cross's steps to a fence and saw more footprints on the other side leading to another fence. (Tr. at 36, 64.) Babington said that, before returning to the precinct with Cross, they first drove to the front of 551 Warwick Street. (Tr. at 37, 62, 65, 211.) Cross said that he did not live at that house but was just watching the residence for a friend, and that only the items on the back table belonged to him. (Tr. at 37-38.) Babington went inside the house and recovered twenty-three ziplock bags of marijuana and several rounds of ammunition. (Tr. at 40, 68.) In a neighbor's backyard directly behind the residence, he recovered two bags, one containing a large bag of marijuana and the other containing a loaded firearm, more marijuana, some scales, and packaging. (Tr. at 40-41.) The government separately represented that the search of the house also uncovered an electricity bill addressed to Cross at 551 Warwick Street, but the police did not seize it. (Gov't Feb. 19, 2008 Resp., at 6 n.1.)

Rosiak gave a somewhat different account. Before ESU attempted to gain entry, he

assigned two officers in a van to guard the Ashford Street side of the block. (Tr. at 181.) When Babington headed north on Warwick Street, he and Velez drove south in a squad car, turned left onto Blake Avenue, and then turned left again onto Ashford Street, where Babington was arresting Cross. (Tr. at 183.) Rosiak asked Cross where he had come from. Cross replied that he had been buying loose cigarettes. (Tr. at 185-86.) Babington does not remember this exchange. (Tr. at 210.) Then, according to Rosiak, Cross was placed into the van on Ashford Street and taken "straight" to PSA-2. (Tr. at 188-89.) Rosiak said he was "a hundred percent sure" of this fact when asked by the government on redirect. (Tr. at 190.) He also mentioned that a female police officer, in addition to Velez and Babington, also rode in the van. (Tr. at 183.)

The government's 3500 materials contain an inventory report completed by Troiano, which indicates that \$176 in cash was recovered from Cross. Troiano denies ever having searched Cross. (Tr. at 142.) Rosiak testified that Babington searched Cross at the time of the arrest but "no contraband or anything to that effect" was recovered. (Tr. at 188.) When confronted with this inconsistency, Babington explained, "Troiano was the main inventory officer. So maybe when I filled out this form I incorrectly put his name down Probably just a mistake." (Tr. at 213.)

After the police brought Cross to the station, O'Neill interviewed him. O'Neill testified that, at the outset of the interview, he explained to Cross his *Miranda* rights. O'Neill then showed Cross a *Miranda* waiver sheet. (Tr. at 76.) The sheet contains questions for confirming that a defendant waived his or her rights to remain silent and have attorney representation. (Tr. at 76; *see also* Gov't Ex. 4.) Cross wrote "yes" and his initials next to each question. Cross then orally confessed that he was a low-level drug dealer who the police awakened that morning. (Tr. at 79-80.) He fled through the back door, tossed the marijuana and firearm over the fence, and

was then arrested on the other side of the block. (Tr. at 80.) When O'Neill asked about the firearm, Cross became silent and refused to provide a written account of his oral confession. (Tr. at 81-82.)

B. The Photo Array³

The court extended the scope of the suppression hearing to include the photo-identification procedure because Babington claimed that his decision to arrest Cross was based, in part, on the CI's prior photo-array identification. Babington initially testified that he did not preserve the photo array. (Tr. at 55.) He said Rosiak had prepared the array, using photos from a database. (Tr. at 56-57.) He described the photo array as having six photographs on six different pieces of paper. (*Id.*) Cross's photo was included in the array because a utility bill for 551 Warwick Street bore his name. (Tr. at 58.) After the June 10, 2008 hearing, Babington changed his testimony and said that the photo array was actually six pictures printed on a single sheet of paper. (Tr. at 200-01.) On June 17, 2008, the government provided the court with a copy of what it claimed was the photo array in question, with six pictures, including one of Cross, with the word "BLACK" handwritten underneath. (*See* Ex. A to Gov't Letter of June 17, 2008.) It was not dated, signed by the witnesses, or identified in any other manner. Much of the hearing on July 24, 2008, concerned this photo array.

Rosiak testified that he was the lead investigator of the alleged marijuana sales transacted at 551 Warwick Street and directed all three of the CI's controlled buys. He learned of Cross when he contacted Consolidated Edison to determine the names of the utility customers at that address. (Tr. at 148-49.) He collected mug shots of Cross and five other individuals with similar physical attributes from a police database and assembled them in a Microsoft Word document.

³ Because the CI is deceased, the court does not have his or her testimony as to what photo-identification procedure, if any, was used.

(Tr. at 150-51.)

Rosiak testified that he never received formal or specialized training on the presentation of photo arrays (Tr. at 174-75, 197) but had prepared a dozen in 2007 (Tr. at 195). He gave a very rudimentary description of the NYPD's official procedures for conducting photo arrays and could not recall the procedures for showing a photo array to the witness and how identifications should be memorialized. (Tr. at 195-96.) He testified that he had never seen a NYPD photo array with a caption at the top and instructions printed on the bottom. (Tr. at 174.)

He printed out the photo array and presented it to the CI with Babington also present. He asked the CI to write his confidential name underneath anyone he recognized. He failed to inform the CI that it is possible that none of the photos related to the investigation. (Tr. at 175.) The CI wrote "BLACK" underneath Cross's picture. (Tr. at 153.) Rosiak testified that he showed the CI the photo array two or three days after the first controlled buy. (Tr. at 157, 160.) Babington testified that the photo array was shown to the CI after the second controlled buy. (Tr. at 207.)

Rosiak initially testified that the CI gave him no other identifying information about Cross other than the photo-array identification. (Tr. at 159.) Later, on re-direct, he testified that the CI mentioned the name "Tyrell" to describe Cross. (Tr. at 193.) He also did not inquire into the relationship between the CI and the seller at 551 Warwick Street. (Tr. at 166-68.) He did not write a summary of or otherwise document the identification. (Tr. at 176.) He admitted that it was an "oversight" on his part. (Tr. at 152.) Rosiak testified that he initially stored the photo-array sheet in the case folder, but it disappeared. Only when responding to the government's request following the June 10, 2008 suppression hearing, did he find it again in a file cabinet in his office. (Tr. at 177.) He said it was stowed in a separate manila envelope with some other

documents not pertaining to this case. He blamed the mis-filing on “sloppy” paperwork and lack of office space. (*Id.*)

C. Cross’s Account

Cross is a thirty-eight-year-old male who lives at 520 Warwick Street with his mother. He also rented a room at 551 Warwick Street because his mother did not like him having “a lot of girlfriends.” (Tr. 2 at 35.) On the morning of August 23, 2007, he first encountered the police in front of 472 Ashford Street, the residence of his girlfriend Christine. (Tr. 2 at 5, 35-36.) He said he had called her earlier that morning, but she did not answer. He went to her house, rang the door bell, and sat on the stoop, waiting for her to come downstairs. (Tr. 2 at 5, 37-38.) When no one answered, he headed for another girlfriend’s house but returned when he heard the door open. (Tr. 2 at 6, 38.) As he was about to re-enter the front gate at 472 Ashford Street, he saw two people turn onto Ashford Street from Blake Avenue and run toward him from the south. (Tr. 2 at 6-7.) He saw Troiano running by and looking at him. Troiano stopped at the corner of Sutter Avenue and Ashford Street, then turned back and ran toward the middle of the block, passing in front of Cross again. (Tr. 2 at 7-8.) As Cross left 472 Ashford Street a second time to head toward his other girlfriend’s residence on Sutter and Shepherd Avenues, Troiano ran up behind him and demanded to see his identification. (Tr. 2 at 8-9.)

Cross asked for the purpose of Troiano’s request. Troiano replied that there had been a robbery around the corner. (Tr. 2 at 8.) Cross then asked whether he fit the description of the suspect and whether he could hear the request over the radio. (Tr. 2 at 8-9.) Troiano became evasive and asked Cross where he had come from. At that point, Rosiak, who was further south on the block peering into another gate, came up to the two of them. (Tr. 2 at 9.) Cross responded that he was “on New Lots and Ashford,” buying loose cigarettes. (Tr. 2 at 10.)

Troiano then put his hand on Cross's chest and again demanded to see his identification. Cross handed over his wallet. (*Id.*) Troiano then read Cross's name and driver's license number over the radio and asked for a search of the house for mail bearing that name. (Tr. 2 at 11.) When confirmation came over the radio that the police had found a utility bill matching Cross's name, Rosiak and Troiano handcuffed Cross, loaded him into a black and white van, and drove to 551 Warwick Street via Blake Avenue. (Tr. 2 at 12.)

When they arrived, Babington came out of the residence and spoke to Rosiak and Troiano before heading into the van. (Tr. 2 at 13.) Babington said, "I found the shit on the table and on top of the china cabinet" and demanded to know, "where the rest of the shit is at [so] I'll see what I can do with you with the D.A." (Tr. 2 at 14.) Cross replied that he did not know what Babington was talking about and had nothing to say. Then, Babington turned and threatened him stating, "[a]ll right, you want to make it hard for me[?] I'm going to fuck your shit up for you. Watch what happens when you get down to the precinct, when you get down to court." (Tr. 2 at 14-15.) Babington then left the van. Ten minutes later, Troiano and a female officer drove Cross back to PSA 2. (Tr. 2 at 15.)

After they arrived at the precinct, O'Neill took him out of his cell. O'Neill wanted to interview him. Cross claims that he asked for a lawyer and refused to talk. (Tr. 2 at 16-18.) O'Neill told him that a lawyer would be available to him at Central Booking, but he first wanted to speak informally off of the record. (Tr. 2 at 18.) He then struck up a conversation about the scar on Cross's face. (Tr. 2 at 18-19.) Later, O'Neill presented Cross with a *Miranda* waiver form and called it an "informational document." (Tr. 2 at 19-20.) Cross asked about the nature of the information and O'Neill said it was to show the District Attorney that Cross had been questioned about the case. (Tr. 2 at 20.) Cross claimed that O'Neill would intersperse questions

about his personal life with directions for him to write “yes” and initial specific questions on the waiver form. (*Id.*) Cross claims that he never got to read the questions because O’Neill held the form. (*Id.*) He thought it was a questionnaire regarding his identity and residence. (Tr. 2 at 21.) He contends that he did not know what he was signing.

II. Discussion

Probable cause “exists when the officers have knowledge or reasonably trustworthy information of facts and circumstances that are sufficient in themselves to warrant a person of reasonable caution in the belief that (1) an offense has been or is being committed (2) by the person to be arrested.” *United States v. Fisher*, 702 F.2d 372, 375 (2d Cir. 1983). In the absence of probable cause, “the arrest is illegal and any obtained evidence is subject to the exclusionary rule.” *United States v. Torres*, No. 05-CR-838, 2006 WL 1982750 at *2 (E.D.N.Y. July 13, 2006). When a motion to suppress is based on an illegal warrantless arrest, the government bears the burden to show that there was probable cause for the arrest. *See United States v. Pena*, 961 F.2d 333, 338-39 (2d Cir. 1992). Here, the submissions raise two dispositive issues regarding probable cause for the August 23, 2007 arrest: (1) whether the photo-array identification ever occurred; and (2) whether the events immediately preceding the arrest established probable cause for the arrest. The court finds against the government on both.

1. The Government Failed to Establish That the Photo-Array Identification Occurred.

The evidence raises substantial doubt as to whether the photo-array identification ever occurred. As an initial matter, the circumstances under which the government produced the array are suspicious. The government did not originally produce the photo array with its Rule 16 discovery or 3500 materials. Rather, it produced the array after the first day of the suppression hearing and shortly prior to Rosiak’s testimony. The government’s explanation for this delay is

implausible. Rosiak claims that he initially filed the array in the proper case folder after the identification. (Tr. at 176-77.) Somehow, the array was removed from that folder and ended up in a “loose folder” in a file cabinet with several other documents not pertaining to this case. (Tr. at 177-78.) He blames the misplacement on his sloppiness and his cramped work space. (*Id.*) The court is unpersuaded.

First, Rosiak did not explain how the array became misplaced. Even though he testified that it was not uncommon for him to misplace files, he specifically testified that he “initially” put the array in the correct case folder. (Tr. at 177-178.) Therefore, in order for the array to end up in the incorrect folder, someone must have either accidentally or purposefully taken the array out of the correct case folder and placed it in an incorrect one. It seems improbable that someone would purposefully do so, and it is difficult to fathom—and Rosiak did not explain—how such a re-filing could be accidental.

Second, Rosiak testified that when the United States Attorney’s Office first contacted him about the case, he was not sure he could find the photo array. (Tr. at 177.) Yet, he managed to rediscover the photo array shortly before testifying. This coincidence casts further doubt upon his already questionable testimony.

Third, Rosiak created this document electronically, using Microsoft Word. (Tr. at 176-78, 202.) Even if Rosiak had misplaced the hard copy, he should have searched for the electronic copy. The electronic file would contain metadata, including its creation date and last modified date. *See Latimer v. Roaring Toyz, Inc.*, 574 F. Supp. 2d 1265, 1269 n.6 (M.D. Fla. 2008) (“Examples of metadata for electronic documents include: . . . file dates (e.g., creation date, date of last data modification, date of last data access, and date of last metadata modification)”). The United States Attorney’s Office for the Eastern District of New York is certainly no stranger to

computer searches and metadata. *See United States v. Graziano*, 558 F. Supp. 2d 304, 314 (E.D.N.Y. 2008). If Rosiak's testimony was truthful, one would expect that the government would still attempt to locate the electronic file because the metadata would corroborate his testimony. Such corroboration is particularly important given the questionable assertions about the alleged identification and Cross's concerns regarding the authenticity of the array. Under these circumstances, Rosiak and the government's failure to do so raises further suspicion. Indeed, the government has not submitted anything regarding the electronic file.

Rosiak and Babington also gave conflicting testimony about when the identification took place. Rosiak testified that the identification occurred after the first controlled buy. (Tr. at 157.) However, Babington testified that the identification occurred after the second controlled buy. (Tr. at 207.) Babington also gave conflicting accounts as to the identification procedure that was used. Initially, he testified that six different photos on six different pieces of paper were placed on a desk. One of those photos was of defendant. However, after going home and thinking about it, he wanted to "correct" his testimony and said that the array consisted of six photos on one piece of paper. (Tr. at 200-01.) In light of the inconsistencies in Babington's testimony and the government's overall late "discovery" of this evidence as well as additional statements made by defendant, the court finds it difficult to credit Babington's testimony.

The photo array itself raises further suspicion as to its legitimacy. It is an 8 1/2 x 11 inch piece of paper with six color pictures of African-American males. (Gov't. Ex. 7.) The only word on the document is "BLACK." (*Id.*) It is undated and unsigned. (*Id.*) It does not contain any information that identifies the case to which it relates. Neither Rosiak nor Babington signed the array as witnesses. The government alleges that the CI identified Cross by signing "BLACK," his alleged code name, under Cross's picture. (Tr. at 153.) However, the

government has not produced any corroborating evidence proving that this code-name “signature,” which is printed in squiggly capital letters, matches the CI’s handwriting. Nor is there any corroborating evidence that the CI’s code name was indeed “BLACK.” There are no notes or reports that memorialize this alleged identification. (Tr. at 176.) Rosiak claims that this failure was an “oversight.” (*Id.*) The court finds it difficult to believe that an officer and a sergeant of the NYPD or their supervisors would permit such carelessness in preparing, conducting, and maintaining the photo-array identification. In other words, this degree of unprofessionalism strains credulity.

The court further shares Cross’s suspicions about Rosiak and Babington’s conduct following the alleged identification. According to Rosiak and Babington, the CI identified Cross as the individual at 551 Warwick Street who sold the CI marijuana, and Cross was the only person present. (Tr. at 23, 25.) The CI allegedly saw a firearm during those purchases. (Tr. at 25.) This establishes sufficient probable cause for an arrest warrant for Cross. However, Rosiak and Babington only obtained a search warrant for 551 Warwick Street. (Tr. at 26.) Furthermore, neither their application nor the search warrant mentions or describes Cross or any individual matching the physical description of Cross. In fact, the warrant application does not mention the photo identification. Cross raised these concerns in his post-hearing brief, but the government has not addressed them. While there may be legitimate reasons for not seeking an arrest warrant at the time and for leaving out Cross’s identity in the application, the government has not set forth such reasons. It could have done so under seal along with the application and warrant. In light of the inconsistencies in the testimonies and the police and government’s questionable conduct, the court finds that the government has not met its burden of proving that the photo-array identification ever took place.

2. The Government Failed to Show That the Events Immediately Preceding the Arrest Established Probable Cause.

Having excluded the photo-array, the only remaining source of probable cause for the arrest of Cross is the events of the morning of August 23, 2007. The government claims that Babington had probable cause for the arrest because: (1) Cross matched the description of the individual that Troiano saw fleeing from the rear of 551 Warwick Street during the execution of the search warrant; and (2) when Babington encountered Cross exiting from the private driveway of 472 Ashford Street, Cross, who was sweating profusely and out of breath, could not explain why he was there. (Tr. at 35; Gov't Opp'n of Oct. 20, 2008 at 16-17.) Cross testified that he was at 472 Ashford Street that morning trying to visit his girlfriend Christine. (Tr. 2 at 36.) He also testified that the first time he encountered the police on August 23, 2007, was when Troiano approached and arrested him. (Tr. 2 at 35, 39.) Based on the court's close observations of the witnesses and review of their testimonies, the court finds the government's account of the events to be highly suspect, rife with inconsistencies, and ultimately, less credible than Cross's account.

First, that morning, the police arrived with over fifteen officers, including two who allegedly were assigned to Ashford Street, which runs parallel behind 551 Warwick Street. Rosiak testified that these two officers were in a van. (Tr. at 181.) Rosiak had assigned these two officers to Ashford Street "in case somebody ran through the backyard and got out onto Ashford Street." (Tr. at 182.) It is somewhat puzzling that Babington, who was in charge of monitoring front-window security, would abandon his post to check on a commotion out back when there were better-positioned officers already posted behind the house on Ashford Street. None of these officers were produced to corroborate any of the police testimony.

Second, when Babington abandoned his post as front-window security, the ESU crew was still working on opening the front door and was vulnerable to threats from the window. The

court finds it odd that Babington would place his fellow officers in possible danger, particularly when there were better-positioned officers.

Third, Babington claims that when he heard noises from the rear of the house, he told Troiano that “we got to get someone back there.” (Tr. at 51.) Then, Troiano abandoned his post as front-window security and circled around a row of houses in order to investigate the alleged noises. (Tr. at 51-52.) For the same reasons set forth above, the court finds this testimony incredible because, at the time, Troiano was also posted as front-window security with Babington. Notably, Troiano, who was initially situated near Babington, did not hear any noise from the rear. In light of the fact that ESU was having trouble knocking down the front door, the court is left to wonder how anyone could hear a noise coming from the rear of the house.

Fourth, even though Troiano allegedly saw the suspect jump over a fence toward Ashford Street, the only person he informed by radio was Babington. (Tr. at 106.) This does not make sense, as there were two officers allegedly already posted on Ashford Street. (Tr. at 181.)

Fifth, at the time Babington learned that the suspect was moving onto Ashford Street, he was still proceeding on Warwick Street toward Sutter Avenue. (Tr. at 33-34.) Yet, inexplicably, Babington did not alert the two officers on Ashford Street for assistance. Furthermore, the two officers on Ashford Street were in a van. (Tr. at 181.) Therefore, these officers were not only better positioned to intercept the fleeing suspect, they had the ability to do so more swiftly than Babington, who was on foot. Rosiak testified that all of the officers had radios that day and could speak “directly with one another.” (Tr. at 113, 185.) While there may be plausible explanations for all of this conduct, the government has not provided it, as is its burden.

Sixth, the court also questions Troiano’s purported observations of the alleged fleeing suspect. Troiano claims that he observed the suspect wearing a knit hat and a brown sweatshirt.

(Tr. at 113.) According to Troiano, the suspect was “looking around very antsy and very nervously.” (Tr. at 104.) About three or four backyards separated Troiano from the suspect. (*Id.*) Chain-link fences separated each of those backyards (Tr. at 103, 110-111), which means that at least four and perhaps five or more layers of criss-crossing metallic chain links obstructed Troiano’s view. Indeed, Troiano admitted that the fences partially obstructed his view because the fences were six-feet high whereas he is only five feet and eight inches tall. (Tr. at 103-106, 111.) While he claimed to have seen the individual make a motion as though he were tossing something over a fence, Troiano could not see what, if anything, was thrown. With so many layers of parallel fencing, it would have been quite a feat for him observe the suspect’s clothing and demeanor.

Seventh, the diverging accounts of what followed the arrest cast further doubts on the police version of events. Rosiak testified that he and Babington drove Cross directly back to the station, as required by procedure. (Tr. at 188-89, 194.) Babington, on the other hand, testified that they first returned to 551 Warwick Street to search and retrieve the items from the house and the backyard before leaving for the precinct. (Tr. at 210.)

In contrast to the dubious testimony of the officers, the court found Cross’s version of the events surrounding his arrest to be at least consistent and plausible. He gave clear and definite answers as to where he was, why he was there, where he was going, which officers he saw, who stopped him, what was said to him, and how he was taken to the precinct, including the kind of vehicle he was placed in and those who accompanied him. Indeed, the government’s only argument for discrediting Cross’s testimony regarding those events is that “it is unlikely that a person would be walking on a street at 7 a.m. for an unsolicited visit to a girlfriend whose last name is unknown to him.” (Gov’t Opp’n at 22.) The court does not find that such behavior is as

implausible as the government suggests, particularly in modern-day New York City.

In sum, the government has not met its burden for establishing probable cause for the arrest. As such, all of his post-arrest statements as well as the cash found on his person are suppressed as the fruits of an illegal arrest. Therefore, the court need not address the issue of whether Cross knowingly waived his *Miranda* rights or whether the array was unduly suggestive.

III. Conclusion

The court is troubled by the government's handling of the discovery. The government produced its discovery in a piecemeal fashion throughout the suppression hearing, sometimes after it had already introduced inconsistent evidence. For example, the government waited until the eve of the hearing to inform the court that the CI is deceased. During the proceedings, the police would suddenly "remember" new statements by defendant or information about the photo identification and arrest. Tellingly, none of these newly "remembered" facts were memorialized in notes or reports, and, somehow, many of these new facts were incriminating. Under Rule 16, Cross was entitled to this discovery before the suppression hearing. The government's belated discovery, the nature of this discovery, and the piecemeal fashion in which the government produced the discovery, significantly calls into question the veracity of its assertions. Accordingly, for the reasons set forth above, Cross's motion to suppress is granted.

SO ORDERED.

Dated: Brooklyn, New York
October 2, 2009

/s/

DORA L. IRIZARRY
United States District Judge